

# **Tentative Rulings for August 19, 2026**

## **Department 1**

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                  | HEARING NAME                 |
|-------------|----------------------------|------------------------------|
| CVRI2402070 | GONZALES vs FRESH UP, INC. | MOTION TO COMPEL ARBITRATION |

**Tentative Ruling:**

Appearances requested to discuss whether moving parties have shown the existence of an agreement to arbitrate. Where, as here, the document is allegedly signed electronically, the opposing party may create a factual dispute by stating that the party does not recall signing the document. *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5<sup>th</sup> 821, *Iyere v. Wise Auto Group, Inc.* (2023) 87 Cal.App.5<sup>th</sup> 747. The evidence submitted by defendants fails to show that plaintiff, and only plaintiff, could have signed the document. The Aguilon declaration states only describes how the onboarding process is supposed to work. Aguilon states that an email was sent to plaintiff and that he executed the documents and uploaded them but does not explain how Aguilon knows that this occurred and that the system worked as she describes it.

2.

| CASE #      | CASE NAME                          | HEARING NAME                                                                                                     |
|-------------|------------------------------------|------------------------------------------------------------------------------------------------------------------|
| CVRI2502391 | HERNANDEZ vs M.B. FAST FOODS, INC. | DEFENDANTS ISHA SAIFIE AND MARYAM SAFIE'S RESPONSE RENEWED NOTICE OF MOTION TO VACATE/SET ASIDE ENTRY OF DEFAULT |

**Tentative Ruling:**

Denied; motion is a renewed motion and fails to comply with *California Code of Civil Procedure* § 1008. Instead, it argues the merits of the defense to the case, that defendants Isha Safie and Maryam Saifie are not liable.

3.

| CASE #     | CASE NAME                                | HEARING NAME                                                                                                            |
|------------|------------------------------------------|-------------------------------------------------------------------------------------------------------------------------|
| RIC2002687 | BOREL vs SOUTHERN CALIFORNIA GAS COMPANY | JOINDER IN SOUTHERN CALIFORNIA GAS COMPANY'S MOTION TO DISQUALIFY WITH SANCTION; OR IN THE ALTERNATIVE MOTION TO COMPEL |

**Tentative Ruling:**

See related tentative ruling.

4.

| CASE #     | CASE NAME                                | HEARING NAME                                                                                            |
|------------|------------------------------------------|---------------------------------------------------------------------------------------------------------|
| RIC2002687 | BOREL vs SOUTHERN CALIFORNIA GAS COMPANY | NOTICE MOTION TO EXCLUDE PLAINTIFF'S EXPERTS NOT PRODUCED AT DEPOSITION OR TO DISQUALIFY WITH SANCTIONS |

**Tentative Ruling:**

Treat motion as a motion to compel attendance of expert(s) at deposition before a date certain. Appearances requested to discuss why this would not be preferable to excluding evidence when no prior order compelling attendance at deposition has been made and what date should be the deadline for producing the witness(es) at deposition.